ICC

* Constitution:-

-> Constitution is the major unit of Republic country.

-> Dr. Ambedkar known as the inventor of the constitution.

-> In 26th Jan, 1950, India's Constitution established.

-> Till that day, we are celebrating 26th Jan as a Republic day.

-> Constitution give us some rights & Duties.

-> M.N. Roy → constitutional Assembly
↓
1934

-> Further constitution:-
↓
448 article
12 schedules
25 devided - parts amendments = 106

-> preamble → Intro. of constitutions

-> We borrowed from UK. -> single citizenship

↓

Parliamentary government.

↳ lower house, upper house

majority Parties

-> we borrowed federalism from Canada.

-> fundament rights -> USA -> Independent judiciary

-> DPSP -> IRIS Const, (Ireland)

-> fundament duties -> USSR

↓

II

-> Process of amendment -> South Africa

10/07/25

* features:

-> Judicial Review :- any of the law can be reviewed by supreme Court anytime)

-> It is a blend of rigidity & flexibility.

-> Federal structure with unitary bias

-> longest constitution

-> Finance comission

-> Federal structure of unitary biased
Independese of judicary
-> Indian - quasi federal state
single citizenship

-> Parlamentary form of government.
Real executive
Nominal executive

-> Integrated & Independent judicary.

-> Fundamental Right: -> If it will not fullfilled by
Article 12 -> 35 file anyone then under article
32 you can write in High court / under article
-> Fundamental duties: / 226 you can write file
in supreme court.

-> 42 - amendments

-> 11 - fundament duties

-> secularism
↓
Negetive secularism
↓
state has not it own religion

Positive secularism
↓
All religion are in the case of any scheme reletad to religion.
→ Germany

-> Emergency provision (Arc :- 352 to 360)
National Emergency -> president (352)
State Emergency
Financial
↓
decelation should be passed through lower house & upper house

OCI → foreigner will work in India whatever they want but citizenship must be their own country

→ State Emergency (356) ⟶ failure of constitution
community
↓
Article 370 dispute
Manipur disturbunction

→ Financial Emergency (360) → Ex:- Sri-Lanka did emergency

→ Universal Adult suffrage (franchise): (Article 326)
↳ Right (cont.)

→ Single citizenship

→ Independent body.

☆ Preamble of Indian Constitution:-

→ Objective Resolution :- Jawaharlal Nehru

→ USA → first input preamble in the constitution.

can

preamble devided in 4 parts:-

1> We the people of India. having solemnly resolved to

2> Sovereign

Socialist -> welfare state

Secular -> Seperation of Churches & states

Democratic -> democracy

Republic and to secure to all citizenship

3> Justice -> social, economical, political

Liberty -> thought, expression, faith, belief, worships (19) freedoms

Equality -> in education, employment give them equality

Fraternity -> to promote brotherhood.

Integrity -> not to disintegrate of Indian territory.

4> 26th Nov. 1949

★ Articles:-

-> No. 5:- Domicile in India.

-> It requires:

- born or parents Born or Risidin India
- Just before 26 Jan 1950 for 5 years.

-> No. 6 :- 19 July, 1948
↓
Permitate date to change citizenship

-> No. 7 :- 1st March, 1947
↓
Remigration India to pakistan

-> NO. 8 : Outlines the citizenship rights of certain individuals of Indian origin residing outside India.

-> No. 9 :- Decline India citizenship when they accept other citizen

-> No. 10 :- deals with the continuance of citizenship rights.

-> NO. 11 :- Acquired Indian citizenship After 1955
- by birth
- by decent
- by registration
- by the process of naturalization
- by incorporation of territory

by birth -> 26th Jan 1950 -
1st July 1987

who between this period. It must be
a Indian citizen

After 1987, to 3rd december 2004
↳ assestors should be Indian

3rd december, 2004 - onwards

-> who proved that their both parents
have Indian citizenship, that it brings
the citizenship of India.

-> by desent :-

26th Jan 1950 — 10th dec 1992
↳ born outside territory, to prove that
either is Indian

10th dec 1992 - 4th dec 2004

↳ either parent was an Indian
citizen at the time of birth.

4th dec 2004 - till now

↳ within the period of birth they should be registered in the IMO in the foreign country. ↳ Indian consulate

↓

parents should be Indian origin.

→ undertaking :- child has no other country's passport

→ by registration:- allows certain categories of individuals to apply for Indian citizenship after residing in India for a specified period

Conditions:-

→ If any person of Indian origin which residing in India period of 7 yrs.

→ If any person of Indian which residing outside of India.

→ person is married to Indian citizen

residing in India which accupied Indian citizenship.

-> Minor children of Indian citizen (person of India origin)

-> If any person has OCI Card holder for the period of five year residing in Indian for 12 months before appling for registar

-> Any person of age whose parents work citizen of Independent India.

-> mandatory
Any person of age either of their parents are citizen of Independent India.

-> by process of naturalization:-

Condition:-

-> You are not a citizen of such country

where Indians are prevented form ~~[illegible]~~ citizenship.

-> If you are a citizen of any other country then you have to ~~[illegible]~~ the before the application of regestrate is filled.

-> You are residing in India and doing service under the government of India for 12 year.

-> A person must be of a good character.

-> The person must have adequited of knowdlged of language that is provided under the 8th of schedual

-> oth of eligencelnce.
ort. 11tech, world-piece, etc

-> by incorporation of terrotory:-

-> Accurged country by India can granted citizenship to their territory.

★ Use of Indian citizenship:-

-> There are 3 base that citizen can decard their citizenship.

-> by renouncing - citizen declares itself to give up it citizenship

-> by termination - citizen acquired other country citizen ship then this one automatically loses.

-> by Deprivation - loses through fraude or disloyalty towards Indian constitution.

-> Article 12 :-

Case :- R.D. Shetty vs International Airport Authority

Rammnd Dayaram

govt

-> If any institution has deep control over any inst. administration

-> If the nature of work of any inst. is of public importance.

-> If the govt. is major share holder of any inst.

-> If the govt. has control over financial & economic resources of the insti

-> If the company inst. corporation, PSU, has been provided with the monopoly status by the state.

-> If any power of state dep. has been delegated to any insti.

-> Article 13:-

1> doctrin of eclipse. -> Which shadowed the vollate laws

" "

Savrability

1> A K Gopalan vs State of Madras
law

2> Freedom of religion in MP
Post -> Void abe initio } Severability
pre -> Void <-
If his not invalid by any close
Custom laws

3> to include laws, Audience, Notification, bylaws, in the category of laws

4> Constitutional Amendment is not include in law.
↳ Keshwanandan Bharti and State of Kerala (1973)

Article 14:-

-> guarantees the right to equality to all persons within the territory of India.

EBL -> UK -> Aduard Kok, AB dise
EPL -> USA

EBL -> Supreme
Rule of law
Equality before the law. } In Indian constitution
Predominance of Legal spirit.

1> law A K Gopalan vs State of Madras

2> Freedom of religion in MP
Post -> Void abe initio } Savorability
pre -> Void <-
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Ab dalse
EBL -> Supreme } Rule of law
Equality before the law. } In Indian Constitution
Predominance of Legal spirit

features, Preamble, citizenship (Art 5 to 11), citizenship Act 1955, Art 12 & 13

i> Rule of law:

-> EPL -> Equality of protection of law

Case:- Charanjitlal Chaudhary Vs Union of India.

-> EPL means Equale protection under equale circumstance. state can make reasonable classification based on some intelligible differentiate.

Article 15:-

-> ① prohibits discrimination based on religion, race, caste, sex or place of birth.

-> ② extends this prohibition to various public spaces and wal

③ Vishakha Vs State of Rajasthan (1978)
Anuj garg Vs hotel association of India
④ Champakam dhorai Rajan Vs state of Madras (1952)

↓
continue

→ 50% of reservation

MR Balaji vs state of Mysur (1962)

Mandal Committion - to identify backward classes
↳ 27% of reservation
↓
OBCs implimented in 1992

Indra Sahani Vs Union of India
↳ Mandal case (1992)
↳ creamy layer
↳ horizontal Reservation in every caste for disable, transgender, women etc

TMA Pai foundation Vs state of Karnataka (2003) ↳ Reservation are not allowed in private institue
Islamic academy Vs state of Kerala (2003)
↳ fixed quota for reservation in private institut.

PA Inamdar Vs state of MH (2005)
↳ based on eligibility applied for any institution.

⑥ From 2019 reservation give for EWS category.

12/08/25

Article 16:-

① Affirms the principle of equality of opportunity in public employment for all citizens
② specifically lists the prohibited grounds for discrimination
③ Allows parliament to make laws prescribing residence requirements for certain jobs.
④ A> Enables the state to make reservations for SC and STs
B Addresses the issue of backlog vacancies.
-> Carry law:-

Suppose previous reservation + current reservation = 90%
↳ Invalid

The great Indian kitchen → Missing

Indira Sahani Vs Union of India

Virpal singh Vs UOI

Consicutation Seniority:-

↳ Virpal singh Vs Union of India

16 (U) A

⑤ Deals with religious or denominational institutions

⑥ 10% EWS class person → reservation

14/08/25

Article :- 17 (Prohibition of untouchability act, 1955)

→ abolishes untouchability and forbids its practice in any form.

(Civile rights protection act 1976)

→ Indian ~~of~~ young lawyer ~~loyal~~ associative Vs state of Kerala (2018)

Article :- 18

deals with the Abolition of Titles.

① state can not give any title to the person accept Academic and military.

② Person can not accept any title from foreign.

③ A non-citizen holding any office of profit or trust under the state cannot accept a title from a foreign state without the President's consent.

④ No person holding any office of profit or trust under the state can accept any present, emolument, or office from or under any foreign state without the president's consent.

19/08/25

Article 19:

-> guarantees six fundamental freedoms to all citizens of India.

-> right to press information
-> right to remain silent
criticizes
stage hold

a> freedom of speech & Expression 19(a)
b> Freedom of Peacefully assemble 19(3)
c> freedom of form association 19(c)
d> freedom of movement
e> freedom of residing in any part. 19(5)
f> freedom right to property
g> freedom of proffession. occupation - 19(6)

a> case-laws:

Romesh Thapar vs state of Madrash (1950)
-> Bennett Coleman vs Union of India (1972)
-> Bijoe Emmanuel vs state of Kerala (1986)
-> R. Rajgopal vs state of Tamilnadu (1994)
↳ cute sankar case
2> interests of the sovereignty and integrity of India
-> The security of the state

-> friendly relations with foreign states
-> Public order
-> decency or morality
-> relation to contempt of court
-> defamation
-> incitement to an offence.

2> Peceful assembly

3> form association -> Amul

5> Movement & Risiding in any state

6> Property -> 300(A)

28/08/25

Article 20:-

Nemo debt bis vlnari

i> No Ex Post facto law.
ii> Protection from Double leopardy
iii> " " " self incrimination.

Case

Caluse (2):

-> Mangul hussain Vs state of bombay

Article 22:

Protection in respect of Arrest / Detension

- Punitive
- Preventive
  - Ordinary law
  - Preventive detention law

To contect with lawyer

UAB, NAC, TADA, POTA, MISA, NDPA

Clauses:

① to ⑦

book